

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the hearing information at the time of service or if separate notice of the hearing date was otherwise subsequently given.***
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$9,215.34, plus costs of \$505.70., for a total of \$9,721.04.
4. Plaintiff to submit revised forms of order and money judgment which appropriately designate plaintiff's current legal name (e.g. "Capital One, N.A., successor by merger to Discover Bank"). If no order for leave to amend plaintiff's name has been previously been entered, leave is hereby granted and the operative complaint deemed so amended. The proposed order shall recite such amendment. The Court takes judicial notice of the "NOTICE OF PLAINTIFF MERGER" filed in multiple pending cases before the Court regarding the merger.

3. 9:00 AM CASE NUMBER: L23-03444

CASE NAME: NAVY FEDERAL CREDIT UNION VS. TIMOTHY INGALLS

*HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM MATTERS ADMITTED FILED BY PLN ON 08/19/2025

FILED BY: NAVY FEDERAL CREDIT UNION

TENTATIVE RULING:

Plaintiff Navy Federal Credit Union ("Plaintiff") filed a Motion to Deem Matters Admitted and Monetary Sanctions on August 19, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on December 2, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Timothy B Ingalls ("Defendant") with a Requests for Admission (Set One). See Declaration of Fahad Hassan filed August 19, 2025 ("Supporting Declaration"), ¶2 and **Exhibit A** thereto (the "RFAs"). The RFAs were served on November 27, 2023 by mail. *Id.* at ¶12*.

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before January 2, 2024 (30 days from and after November 27, 2023 was December 27, 2023 and five calendar days thereafter fell on January 1, 2024, a court holiday, which would have extended the deadline to January 2, 2024). No responses were

received by that deadline. See *id.* at ¶13 and **Exhibit B**. Despite meet and confer efforts, no responses were received through the time of the filing of the motion. See *id.* at ¶14.

*Although the Supporting Declaration references an attached Proof of Service, no such Proof was attached and the relevant sentence erroneously refers to “...those Interrogatories...”

23 2. On November 27 2023, our office served Request of Admissions on
24 Defendant TIMOTHY B INGALLS by Mail. A copy of those Interrogatories, including
25 Proof of Service, is attached as **Exhibit A** and incorporated by reference.

Supporting Declaration, ¶12. However, given the attached meet and confer letter and statement regarding service of the RFAs made under oath in the Supporting Declaration the Court finds the subject RFAs were served, notwithstanding the lack of an accompanying Proof of Service.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. Plaintiff engaged in meet and confer efforts and Defendant did not respond to those communications and did not provide responses to the RFAs.
4. No opposition or other responsive pleadings by Defendant have been filed with the

Court.

Sanctions

1. Defendant's failure to respond to the RFAs even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).
2. Defendant's failure to respond to meet and confer efforts regarding the RFAs constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).
3. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the RFAs, the Court finds that Defendant did not act with substantial justification.
4. Moreover, monetary sanctions are mandatory pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(c).

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 5 and RFA Nos. 7 through 9 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 6, is DEEMED ADMITTED by Defendant.
4. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$360.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the Supporting Declaration. The Monetary Sanctions shall be paid within thirty (30) days from notice of entry of this order.
5. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: L23-04878
CASE NAME: DISCOVER BANK VS. JOSIAH RAMIREZ
***HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO CCP 6646**
FILED BY: DISCOVER BANK